

Budgetary Quote

HOSPITALES ZUMAYA, S.A. de CV

IBA BUDGETARY QUOTATION

TO: **HOSPITALES ZUMAYA, S.A. DE CV**

Attention of: Carlos Cardeña
Villahermosa
Mexico

SCOPE OF SUPPLY

For the installation of a state-of-the-art PET isotope production center.

The following system proposal contains a complete set of equipment for the installation of your new radiopharmaceuticals production center plus all relevant engineering services for the installation and start-up of the new equipments.

We understand your main objectives as:

- ✓ Building a world-class radiopharmacy
- ✓ Maximizing your return on investment
- ✓ Commercial tracer production at lowest cost & highest reliability

Therefore, our offering is based on the following main elements:

- ✓ Supply the most advanced technology at all process stages
- ✓ Best performing equipment backed-up by unique support capabilities

ABOUT IBA

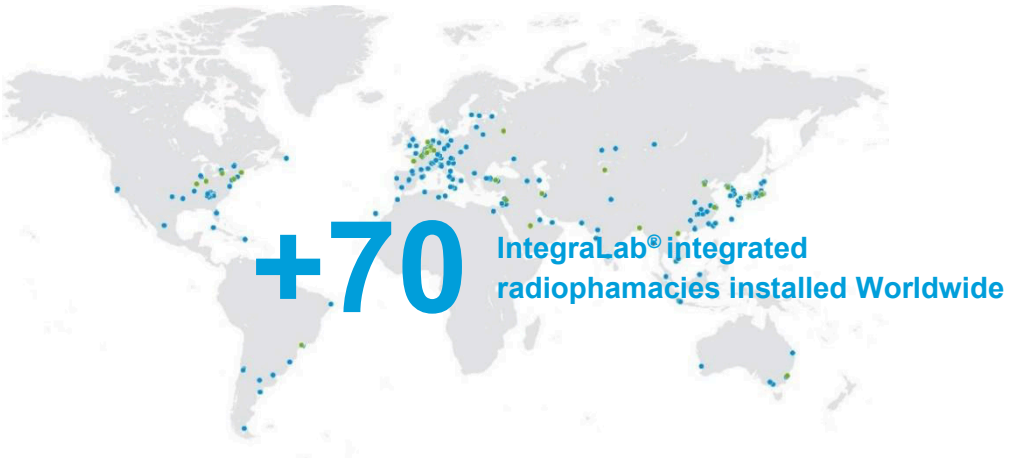
IBA (Ion Beam Applications S.A.) is a global medical technology company focused on bringing integrated and innovative solutions for the diagnosis and treatment of cancer. The company is the worldwide technology leader in the field of proton therapy, considered the most advanced form of radiation therapy available today. The company's expertise lies in the development of next-generation proton therapy technologies and radiopharmaceuticals that provide oncology care providers with premium quality services and equipment, including IBA's leading fully-integrated IntegraLab® system.

Headquartered in Belgium and employing about 1,400 people worldwide, IBA has installed systems across the world.

ABOUT IBA RADIOPHARMA SOLUTIONS

Based on more than 35 years of experience, IBA RadioPharma Solutions supports hospitals and radiopharmaceutical distribution centers with their in-house radioisotopes production by providing them global solutions, from project design to the operation of their facility. In addition to high-quality technology production equipment, IBA has developed in-depth experience in setting up GMP radiopharmaceuticals production centers.

IBA offers a wide range of radiochemistry solutions designed to be highly productive and reliable for your everyday tracer needs, as well as customizable and flexible for your research purposes.



YOUR CONTACT AT IBA



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SCOPE OF SUPPLY

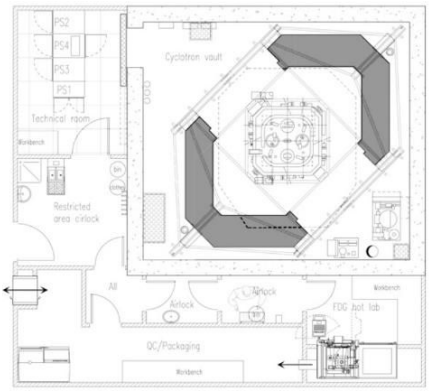
INTEGRALAB® ONE.

IntegraLab®ONE is the real ready-to-run integrated radiopharmacy. It has been designed to ensure a fast, smooth and risk-free set up of your GMP radiopharmacy.

You will benefit from an optimized solution in all respects. The complete IBA IntegraLab®ONE solution includes all key features to ensure that your radiopharmacy is designed, built and operated to the highest possible standards.

Reduce your project lead time

Layout optimization and equipment selection ensures smooth integration and leads to minimum installation and qualification period.



- Optimized facility layout, compliant with GMP regulations
- IBA Cyclone® KIUBE, Nirta® targets and Synthrera® +
- Hot cell systems, quality control (QC) equipment, radiation monitoring and highly effective radiation protection equipment
- GMP support documentation, including Pharmaceutical Quality System procedures, Equipment Qualification and Process Validation protocols

Increase your production uptime

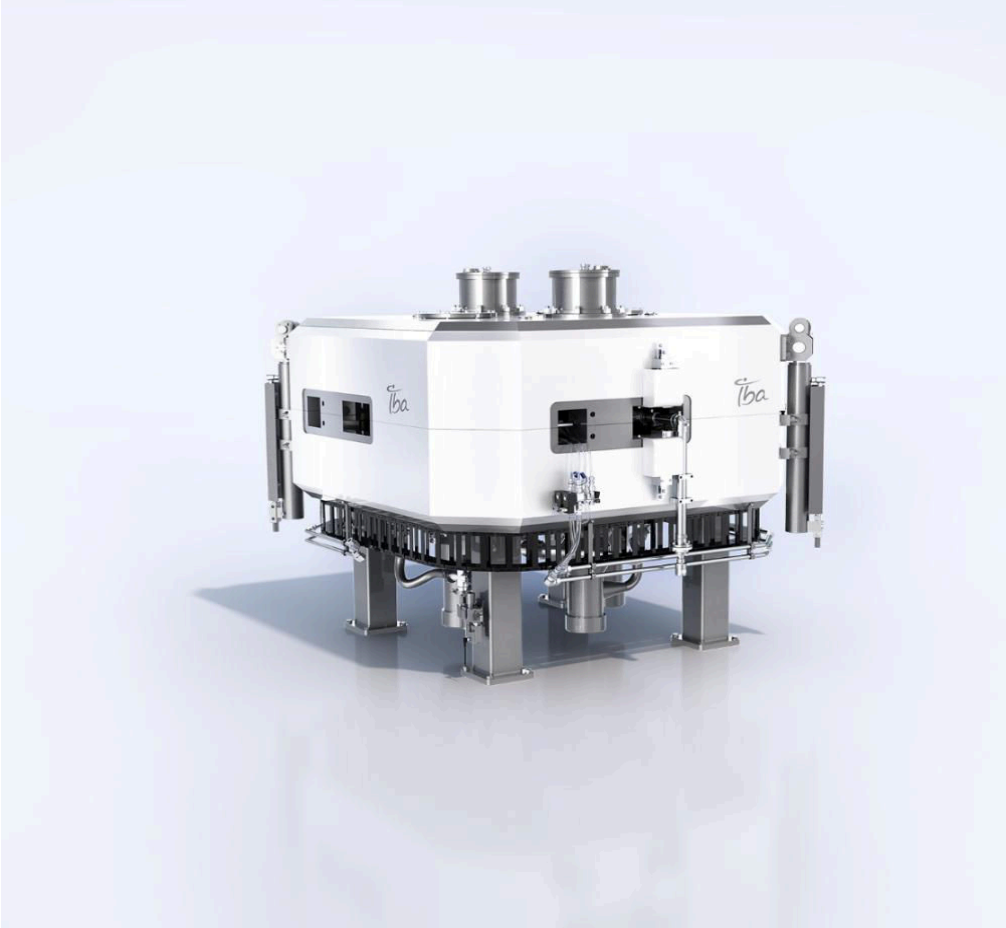
Our commitment is to provide you with the most reliable equipment and the most responsive technical support (over 98% operational availability is regularly achieved at most IBA facilities).

- Warranty and maintenance options
- IBA's outstanding 24/7 technical support and spare parts availability

Increase your ROI

Effective organization and training within your radiopharmacy, combined with the above-mentioned short project lead time and maximized operational availability will significantly reduce the cost per patient dose, leading to a faster and higher rate of return on investment.
Your project will be totally coordinated and your facility brought rapidly into operation by an experienced IBA project manager, fully supported by our in-house team of experts.
Take advantage of IBA's 35 years of proven expertise and innovation in radiopharmacy design and operation.

CYCLONE® KIUBE MAX POTENTIAL, MAX CAPACITY.



More information on www.iba-RadioPharmaSolutions.com

The information contained in this proposal is
PROPRIETARY and CONFIDENTIAL.
Any use and/or distribution of the material
contained herein is strictly prohibited without the written prior approval of IBA

Price Summary

Total Sum DAP – Delivered at Place, Villahermosa, Mexico (Incoterms 2020)	€ 3.185.000

Three Million One Hundred and Eighty Five Thousand Euro*

IBA Budgetary quote

Cyclone 18 MeV and Targetry | HOSPITALES ZUMAYA, S.A. de CV | KIUBE INTEGRALAB ZUMAYA TABASCO | Ref. 2025/8499 | Ver. 02.01

Cyclotron & Targets

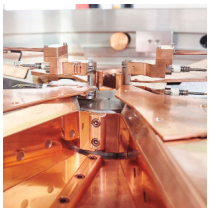


Cyclone® KIUBE 180	Qty	Unit
	1	set

18 MeV proton cyclotron - CE Marked - beam current 180µA - able to produce 24Ci of F18 in 2 hours
Automatic dual beam (dual irradiation) mode
One proton source included - 2nd optional (201.070 Second Proton Source for Cyclone® Kiube)
All 8 exit ports fully piped and wired with target manifold for compressed air and water.
Only 4 vacuum valves and 4 strippers systems are installed in standard, 4 other ones are available in option (220.065 Nirta® target installation pack for Cyclone® Kiube)
Helium cooling is optional and can be added, exit port by exit port, for Nirta targets that require helium cooling (max 4 ports) with art. 227.001 and 227.002.

All sub-systems: magnet system, RF system, vacuum system, control system (PLC, monitors, software), all power supplies, primary cooling system

Manufacturer:	IBA
Article code:	201.052



Second Proton Source for Cyclone® KIUBE	Qty	Unit
	1	set

One additional and fully functional proton source to increase production reliability.
Optional upgrade (provided that ordered at the same time as the cyclotron)

Manufacturer:	IBA
Article code:	201.070



Dual Beam for Cyclone® KIUBE	Qty	Unit
	1	set

The Cyclone® KIUBE can operate in dual beam mode: simultaneous beam extraction on two opposite exit ports.

Manufacturer:	IBA
Article code:	201.072



Cyclone KIUBE Eco-Mode	Qty	Unit
	1	set

The Cyclone® KIUBE has an ECO-mode for the vacuum standby that reduces the electrical load even lower while keeping cyclotron under vacuum.

Manufacturer:	IBA
Article code:	201.073



Interlock System for Cyclone® KIUBE	Qty	Unit
	1	set

Cyclotron control system and Buyer building system must exchange signals to:
- Allow the beam production;
- Allow activity transfer from a target to a receiving station/hotcell in a laboratory;
- Ensure emergency stop of the beam whenever required.

Manufacturer:	IBA
Article code:	201.075



Target safety system for Cyclone® KIUBE	Qty	Unit
	1	set

The Cyclone® KIUBE has a real-time target safety system that continuously monitors the pressure inside the target and compares it a theoretical curve. If an abnormal pressure is detected, an alarm is generated and the ion source current is kept in safe mode.

Manufacturer:	IBA
Article code:	201.076

IBA Budgetary quote

Cyclone 18 MeV and Targetry | HOSPITALES ZUMAYA, S.A. de CV | KIUBE INTEGRALAB ZUMAYA TABASCO | Ref. 2025/8499 | Ver. 02.01

Cyclotron & Targets



Zephiros® software control system for Cyclone® KIUBE	Qty	Unit
	1	set

The cyclotron and targets are completely automated through a highly reliable industrial Programmable Logic Controller (PLC). The dual screen User Interface provides all data and feedback to the User.

Manufacturer:	IBA
Article code:	201.080



Zephiros® automatic start-up for Cyclone® KIUBE	Qty	Unit
	1	pc

This option allows programming the automatic start-up of the cyclotron and beam on F18 target at a specified time.

Manufacturer:	IBA
Article code:	201.081



Zephiros® remote access service pack Cyclone® KIUBE	Qty	Unit
	1	pc

The remote access allows supervision of the cyclotron or diagnostic, from any location where internet is available using secured access (VPN) over
customer ADSL line, by an IBA engineer.

Manufacturer:	IBA
Article code:	201.082



IBA Kare Portal - 1 year access	Qty	Unit
	1	pc

The IBA® Kare Portal is a comprehensive online platform designed to optimise system uptime, streamline access to essential information, and support efficient training of new operators. Accessible from any computer and select smartphones, it enhances the interaction between IBA customers and their IBA systems, including chemistry and cyclotrons, while offering key features like data management, system monitoring, alarms, and real-time documentation updates.

Key functionalities include:
-
Remote Monitoring & Alarming: Customisable alarms and remote control station views for immediate insights and support, regardless of location.
-
Documentation & Information Access: Up-to-date, product-specific technical documentation and IBA team contacts.
-
Ticketing & Support: A ticketing system to report and track issue resolutions, enhancing support efficiency.
-
Production Reporting & Dashboarding: Digital production reports and dashboard views to follow system status and key signals anytime, anywhere.

- Obsolescence Management: Tailored specifically for Cyclotrone® Mid Energy systems.

Note: Access to the IBA Kare Portal will be granted for one year starting from the acceptance test. Some features of the IBA Kare Portal require a permanent connection to be fully effective.

Manufacturer:	IBA
Article code:	203.001

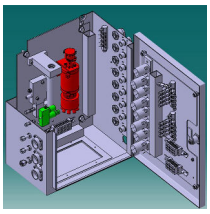


IBA 18F Target Line Switching Box	Qty	Unit
	1	set

To allow transfer of any of up to 7x F18 targets to any of up to 7x 18F- chemistry modules.

Manufacturer:	IBA
Article code:	220.021

Cyclotron & Targets



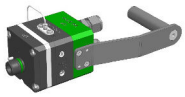
18F Target and Line rinse system	Qty	Unit
	1	set
Complete system to flush target and lines (including switching) with 16O-water.		
Manufacturer:	IBA	
Article code:	220.022	



Nirta® target maintenance support	Qty	Unit
	1	pc
Target maintenance support designed to make the target maintenance safe and easy.		
Manufacturer:	IBA	
Article code:	220.059	



Nirta® Shielded Door for 18F Target Cyclone® KIUBE	Qty	Unit
	2	pc
to limit concrete activation in the vault and facilitate decommissioning afterwards.		
Manufacturer:	IBA	
Article code:	220.060	



Nirta® HCFT F18 - 700 for Cyclone® KIUBE	Qty	Unit
	2	pc
High yield Nirta® Helium Cooling Free Target F18. Water target - enriched water - Niobium insert - for reaction 18O(p,n)18F for production of up to 700GBq of fluoride-18 (after 2 hours irradiation, EOBA). Including window assembly, valves, controls, water cooling and electrical isolation; pressure transducer; quick disconnect.		
Manufacturer:	IBA	
Article code:	226.003	



Target body Nirta® HCFT F18 - 700 for Cyclone® KIUBE	Qty	Unit
	1	pc
This F18 target body is designed to enhance system reliability and reduce dosimetry by enabling maintenance on a cold target and allowing rotation. The target body is compatible only with exit ports that are already equipped with an IBA F18 target of the same generation and capacity. It is available exclusively as part of an offer that includes at least one F18 target of the same specifications.		
Manufacturer:	IBA	
Article code:	226.013	



Nirta® HCFT target maintenance support	Qty	Unit
	1	pc
Target maintenance support designed to make the target maintenance safe and easy.		
Manufacturer:	IBA	
Article code:	226.020	

IBA Budgetary quote

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Cyclotron & Targets



Nirta® HCFT 13N Ammonia for Cyclone® KIUBE	Qty	Unit
	1	pc

Helium Cooling Free 13N target
Within 2,9 ml volume for in-target production of NH3 through 16O(p,a)13N reaction, including window assembly, valves, controls, water cooling and electrical isolation; vacuum isolating gate valve, quick disconnect

Production of 1Ci NH3 in 20 min of irradiation

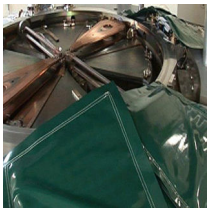
Manufacturer:	IBA
Article code:	226.040



Dose calibrator	Qty	Unit
	1	pc

Dose calibrator, for measurement of F-18 activity (20 Ci for SAT)

Manufacturer:	IBA Partner
Article code:	235.001



Local shielding for maintenance (set of 2)	Qty	Unit
	2	set

Shielding of inside parts (targets,…): lead balls soft bag for gamma dose reduction during maintenance - set of 2 pc for one F18 target

Manufacturer:	IBA
Article code:	235.010



Cyclotron toolbox (for installation and mounting)	Qty	Unit
	1	pc

Mechanical tools for installation.

Manufacturer:	IBA
Article code:	235.030

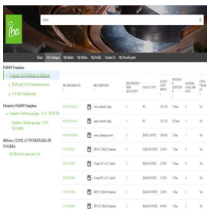
Technical document
Operation, maintenance & service manuels for cyclotron

Technical doc in English for cyclotron project	Qty	Unit
	1	pc

Comprehensive set of documentation including User Manuals, Maintenance Manuals.
This documentation is provided in electronic format.

Documentation is provided only in English as per your choice in the frame of this offer.

Manufacturer:	IBA
Article code:	240.000



Recommended Spare Parts for Cyclone® KIUBE	Qty	Unit
	1	pc

The recommended spare parts comprises all the spare parts (excl. consumables) that are recommended to have available on site for maintenance and repairs of the Cyclone® KIUBE. The list is established for the first five years of operation of the cyclotron.

Manufacturer:	IBA
Article code:	241.000

IBA Budgetary quote

Cyclone 18 MeV and Targetry | HOSPITALES ZUMAYA, S.A. de CV | KIUBE INTEGRALAB ZUMAYA TABASCO | Ref. 2025/8499 | Ver. 02.01

Cyclotron & Targets



Kiube consumables & wear parts for 1st year warranty	Qty	Unit
	1	pc

Consumables first year warranty: including
• 2x kit for 1 ion source maintenance (chimney, cathodes, RF contact, o-rings, screws…)
• 10 Strippers (extraction foils):
• 1x kit for 10 F18 target maintenance (havar foils, Niobium foils, o-rings, screws,…)

(quantities based on average cyclotron use for first year)

Manufacturer:	IBA
Article code:	241.001

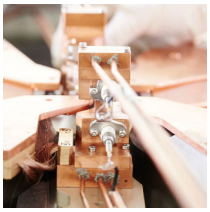


PET cyclotron installation and commissioning	Qty	Unit
	1	set

Cyclotron, all subsystems and targetry installation and commissioning by IBA skilled staff.

Excluding equipment rigging (Buyer's responsibility and charges).

Manufacturer:	IBA
Article code:	600.001



PET cyclotron installation pack	Qty	Unit
	1	set

Including site tools and cables for installation by IBA.

Manufacturer:	IBA
Article code:	600.002



Cyclotron Acceptance Tests	Qty	Unit
	1	set

On site validation according quality procedures required by ISO 9001 Quality Certified System
Operational tests of cyclotron interlocks
Acceptance tests according to IBA SAT: beam current, duration & performance tests

Manufacturer:	IBA
Article code:	600.003



Packing for PET project	Qty	Unit
	1	set

All equipment is gathered in Belgium for inspection before being shipped to customer site.

Manufacturer:	IBA
Article code:	630.010



Transportation from IBA for PET project	Qty	Unit
	1	set

according to incorterm defined in this offer.

Manufacturer:	IBA
Article code:	630.015

Cyclotron & Targets



PET cyclotron project coordination	Qty	Unit
	1	set

Your Project Manager will be your single point of contact for IBA equipment.
He will take care of the cyclotron project coordination and will be on customer site during the most critical phases: start-up of the project and site inspection before cyclotron rigging.
Optional: additional visit by the project manager (610.010)

Manufacturer:	IBA
Article code:	640.010



Insurance and financial costs PET project	Qty	Unit
	1	set

Credit Insurance and/or LC (Letter of Credit) confirmation costs (LC opening at customer's charge).

Manufacturer:	IBA
Article code:	640.090



Standard warranty for 1st year for PET cyclotron	Qty	Unit
	1	set

Inclusive of (for IBA Cyclotron ONLY): all spares, hotline 24/7, remote assistance, all emergency repairs and 1 preventive maintenance of 2 days/year, exclusive of consumables coverage

Manufacturer:	IBA
Article code:	650.001

Chemistry Modules



FDG production on site hot test on Synthera®	Qty	Unit
	1	set

Including Fludeoxyglucose (FDG) script.
Requires one Synthera.

Cassettes and consumables for tests: Buyer's responsibility

Manufacturer:	IBA
Article code:	250.003



FPSMA production on site hot test on Synthera®	Qty	Unit
	1	set

Including 18F-PSMA script.
Requires ONE Synthera module.

Cassettes and consumables for tests: Buyer's responsibility

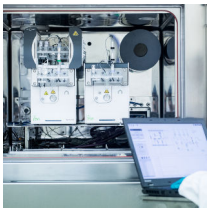
Manufacturer:	IBA
Article code:	250.011



Synthera®+ module	Qty	Unit
	1	pc

Full automated, CE Marked, synthesis module for FDG, FPSMA, FET, NaF, FCH, Ga68 peptide labelling,... and any development.
Combination with accessories or further modules possible for complex radiosynthesis.
Up to 3 modules can be installed in one hotcell.

Manufacturer:	IBA
Article code:	250.017



Workstation for Synthera® platform	Qty	Unit
	1	pc

Control station and server for Synthera Platform.
Typically one workstation is recommended for each hotcell compartment that will host Synthera modules.

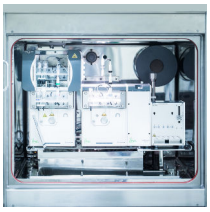
Manufacturer:	IBA
Article code:	250.050



Remote access service pack for Synthera® platform	Qty	Unit
	1	pc

The remote access allows supervision of the Synthera®+ or diagnostic, from any location where internet is available using secured access (VPN) over customer ADSL line, by an IBA chemistry engineer.

Manufacturer:	IBA
Article code:	250.060

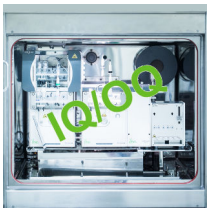


Chemistry platform installation (Synthera®, CASSY®)	Qty	Unit
	1	set

Including installation and commissioning (cold runs)

Manufacturer:	IBA
Article code:	600.020

Chemistry Modules



Chemistry platform IQ/OQ (Synthera®, CASSY®)	Qty	Unit
	1	set

Installation and Operational Qualification of Synthera® platform performed by IBA, based on IBA standard protocols, during installation.
Performance Qualification will be performed by the customer.

Cassettes and consumables for tests: Buyer's responsibility

Manufacturer:	IBA
Article code:	600.022



Standard warranty for Synthera® platform 1st year	Qty	Unit
	1	pc

Warranty for one (1) year for one Synthera® platform: inclusive of all spares, hotline 24/7, remote assistance, all emergency repairs, exclusive of consumables coverage.

Manufacturer:	IBA
Article code:	650.030



Preventive Maintenance during 1st year warranty	Qty	Unit
	1	pc

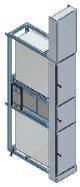
One preventive maintenance will be performed on Synthera platform, by IBA engineer during 1st year of warranty.

Manufacturer:	IBA
Article code:	650.033

Hot cells



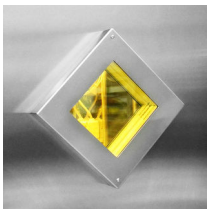
Double vertical production hotcell	Qty	Unit
	2	pc
Class B, 75mm Pb shielding, S/steel finish, 2 GM included, NO lateral cabinet column		
Manufacturer:	IBA Partner	
Article code:	263.005	



Lateral Column	Qty	Unit
	1	pc
Lateral Column for 2 production hot-cells		
Manufacturer:	IBA Partner	
Article code:	263.009	



Extended laminar flow hotcell - 75 mm Pb	Qty	Unit
	1	pc
Class A dispensing hot cell (75mm of lead), suitable for telemanipulators (optional) with 1 prechamber class B shielded drawer type, s/steel finish, hinged door, dose calibrator, 1 GM.		
Manufacturer:	IBA Partner	
Article code:	263.058	



Lead glass window (75mm) for production hotcell	Qty	Unit
	2	pc
Lead glass window, 75mm Pb equivalence, perfectly transparent		
Manufacturer:	IBA Partner	
Article code:	264.006	



Anti-corrosive coating for synthesis hotcell	Qty	Unit
	1	pc
Internal coating of the main chamber to protect it from corrosion.		
Manufacturer:	IBA Partner	
Article code:	264.011	

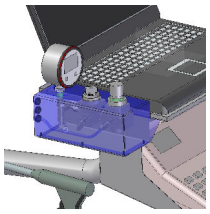


Hotcell accessory for multi-run with IFP loader	Qty	Unit
	1	pc
Synthesis hot cell accessory upgrade for multi-run with the IFP Loader consisting in a stainless steel tray with a slide allowing the use of the Synthera+ Loader with smooth ejection of the IFP cassettes.		
Manufacturer:	IBA Partner	
Article code:	264.030	



Dispensing Vial-Syringe Delivery System VES-SES	Qty	Unit
	1	unit
Dispensing Vial Delivery System compatible with vials AND syringes. Pig load/unload in the Packaging Lab. Automatic lead pig re-capping.		
Manufacturer:	IBA Partner	
Article code:	264.096	

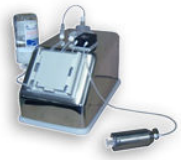
Hot cells



Built-in bubble point test	Qty	Unit
	1	pc
manual operated, built-in the hot cell front		
Manufacturer:	IBA Partner	
Article code:	264.304	



Customizable Exit Drawing Position Dispensing Cell	Qty	Unit
	1	pc
This option denotes the user requirement to exit the final product vial at a different position than at the front side of the dispensing hot-cell. This location is usually based upon the final layout of the facility confirmed by all parties involved. (Note: the default exit location is on the front side of the hot-cell, next to the dispensing operator)		
Manufacturer:	IBA Partner	
Article code:	264.306	



Semi-automatic syringe dispenser	Qty	Unit
	1	pc
The dispenser has been developed specifically for syringe dispensing but it can be used for vial dispensing as well if placed in dispensing hotcell type 263.050.		
Manufacturer:	IBA Partner	
Article code:	265.220	



Telemanipulators for Research (pair) TRUMOTION	Qty	Unit
	1	set
Set of standard telemanipulators (1 pair) for research hotcells		
Manufacturer:	IBA Partner	
Article code:	269.011	



Telemanipulators Accessories TRUMOTION	Qty	Unit
	1	set
Additional accessories required for the correct functionality of the telemanipulators		
Manufacturer:	IBA Partner	
Article code:	269.015	



PET hotcells installation	Qty	Unit
	5	set
by hotcell supplier skilled staff Excluding equipment rigging (Buyer's responsibility and charges).		
Manufacturer:	IBA Partner	
Article code:	600.071	

Hot cells



Telemanipulators installation	Qty	Unit
	1	unit
installation of 1 pair of telemanipulators during hot-cell installation		
Manufacturer:	IBA Partner	
Article code:	600.079	

Quality Control



HPLC for FDG (min.configuration)	Qty	Unit
	1	pc

Gas purge, Isocratic pump, manual injector, Column heater (Thermostated Column), Pulse Amperiometric Detector for FDG analysis, vacuum degasser, Analysis Software, HPLC starter kit, Maintenance kit.
Radiodetector is combined with TLC.

Requires PC system (278.090)
Radioactive source for calibration: Cs137 9kBq (buyer's responsibility)

Possibility to upgrade this HPLC to Multitracer analysis through Add-on 279.002 (for NaF)

Manufacturer:	IBA Partner
Article code:	278.001



Radioactivity detector for HPLC	Qty	Unit
	1	pc

Radio flow detector dedicated for detection of PET isotopes with low background.

Manufacturer:	IBA Partner
Article code:	278.002



HPLC column for FDG	Qty	Unit
	1	pc

Column and pre-column

Manufacturer:	IBA Partner
Article code:	278.005



GC for PET	Qty	Unit
	1	pc

Gas Chromatograph, fast residual column (residual solvent analysis), capillary column, FID detection, automatic sample injector,

Option:
Headspace injector (279.050)

Manufacturer:	IBA Partner
Article code:	278.020



TLC system and Rad. detector DUAL for PET isotopes	Qty	Unit
	1	pc

Combined Radioactivity Detector and TLC scanner for all PET nuclides or nuclides which are emitting high energetic positrons.

Radioactive source for calibration: Cs137 4kBq (buyer's responsibility)

Manufacturer:	IBA Partner
Article code:	278.030



Kryptofix test	Qty	Unit
	1	pc

CCD camera for Kryptofix test

Manufacturer:	IBA Partner
Article code:	278.040

Quality Control



pH meter & micro probe	Qty	Unit
	1	pc
The pH-Meter needs probes and calibration buffers to determine the correct pH (included).		
Manufacturer:	IBA Partner	
Article code:	278.045	



MCA (multi channel analyser)	Qty	Unit
	1	pc
Non cooled crystal detector (radionuclide purity) (test not mandatory for batch release) including lead shielding and analysis software. Radioactive source for calibration Cs137 9kBq and multi-isotope source are needed (buyer's responsibility)		
Manufacturer:	IBA Partner	
Article code:	278.050	



Dose calibrator for quality control , lead shielding	Qty	Unit
	1	pc
To be calibrated with radioactive source for Calibration Cs137 10MBq (buyer's responsibility)		
Manufacturer:	IBA Partner	
Article code:	278.060	



LAL Endotoxin test system (Pyrogen analysis)	Qty	Unit
	1	pc
NEXTGEN PTS Endotoxin test system including reader and will be conneced to server for data printer		
Manufacturer:	IBA Partner	
Article code:	278.072	



Sterility test to be subcontracted by end user	Qty	Unit
	1	pc
According to Pharmacopea, sterility test is part of quality control and is usually locally subcontracted to specialized laboratory. It is the end user responsibility to find the laboratory and to subcontract directly the test.		
Manufacturer:	IBA Partner	
Article code:	278.074	



Printer for QC results to be archived	Qty	Unit
	1	pc
Laser Printer		
Manufacturer:	IBA Partner	
Article code:	278.091	

Quality Control



Server solution for Quality Control	Qty	Unit
	1	pc
Server solution for Quality Control includes 2 PC workstations		
Manufacturer:	IBA Partner	
Article code:	278.092	



QC FDG Start-up kit	Qty	Unit
	1	pc
Necessary consumables required for the initial operation/training of a quality control laboratory for [18F]FDG (excluding glassware).		
Manufacturer:	IBA Partner	
Article code:	278.100	



Additional support IQ/OQ service for QC equipment	Qty	Unit
	1	day
IQ/OQ service for additional QC equipment		
Manufacturer:	IBA Partner	
Article code:	278.102	



Full Service Pack for Basic QC	Qty	Unit
	1	pc
The full service pack for a standard FDG QC including: - The Basic instrument Installation - The Basic instrument training - The advanced QC-application training for FDG) - The IQ/OQ - Travel fees		
Manufacturer:	IBA Partner	
Article code:	278.105	



Add-on Multitracers for HPLC UV and conductivity	Qty	Unit
	1	pc
Column changer for up to 6 columns.		
Manufacturer:	IBA Partner	
Article code:	279.014	



HPLC Quat. UV detection	Qty	Unit
	1	pc
Quaternary pump, UV detector, manual injector, Column heater (Thermostated column), vacuum degasser, HPLC starter kit, Maintenance kit, Analysis software. Requires radioactivity detector Radioactive source for calibration: Cs137 9kBq (Buyer's responsibility)		
Manufacturer:	IBA Partner	
Article code:	279.015	

Quality Control



HPLC column for 18-FES	Qty	Unit
	1	pc
HPLC column for 18-FES		
Manufacturer:	IBA Partner	
Article code:	279.026	



Add-on Conductivity Detector for HPLC R&D	Qty	Unit
	1	pc
Conductivity detector to be added on HPLC R&D		
Manufacturer:	IBA Partner	
Article code:	279.031	



HPLC column for 18F-PSMA	Qty	Unit
	1	pc
HPLC column for 18F-PSMA		
Manufacturer:	IBA Partner	
Article code:	279.039	



HPLC column for 18F-Miso	Qty	Unit
	1	pc
HPLC column for F-Miso		
Manufacturer:	IBA Partner	
Article code:	279.043	



HPLC column for 13N-Ammonia	Qty	Unit
	1	pc
HPLC column for 13N-Ammonia		
Manufacturer:	IBA Partner	
Article code:	279.047	

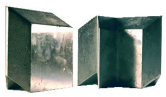


Additional days for QC eqt installation or training	Qty	Unit
	1	set
1 day for installation and 1 day for training on supplementary quality control equipment. To be performed following installation/training of FDG standard QC equipment.		
Manufacturer:	IBA Partner	
Article code:	600.089	

Laboratory Equipment



Chest lead shield protection 30mm	Qty	Unit
	2	pc
Movable bench protection for gamma radiation, 30 mm lead		
Manufacturer:	IBA Partner	
Article code:	282.009	



Lead brick set (20 pieces)	Qty	Unit
	1	pc
Set of LEAD BRICKS to build local protection inside the QC room		
Manufacturer:	IBA Partner	
Article code:	282.011	



Fixed particle counter	Qty	Unit
	1	pc
For GMP mandatory monitoring during aseptic dispensing in grade A environment (1/dispensing). Also required in grade A isolator for sterility testing.		
Manufacturer:	IBA Partner	
Article code:	290.031	



Portable Particle Counter	Qty	Unit
	1	unit
Portable Particle Counter		
Manufacturer:	IBA Partner	
Article code:	290.033	

IBA Budgetary quote

Cyclone 18 MeV and Targetry | HOSPITALES ZUMAYA, S.A. de CV | KIUBE INTEGRALAB ZUMAYA TABASCO | Ref. 2025/8499 | Ver. 02.01

Radiation Monitoring



Gamma dose rate area monitors - Laboratory	Qty	Unit
	3	pc

High Range Gamma Detector for the production laboratories
Includes remote probe (1 µSv/h - 10 mSv/h) and alarm unit.

Manufacturer:	IBA Partner
Article code:	301.001



Gamma dose rate area monitors - Cyclotron vault	Qty	Unit
	1	pc

High Range Gamma Detector with remote ionisation chamber for the cyclotron vault (1 µSv/h - 10 mSv/h)
This detector is meant to check the dose rate when the cyclotron is off.
Alarm unit included.

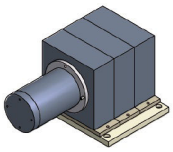
Manufacturer:	IBA Partner
Article code:	301.002



NaI (3") for online stack monitoring	Qty	Unit
	1	pc

Detection of small activity concentration in air & exhaust gases.
Stack monitor software, stack flow meter, alarm unit
Optional: Lead Castle for stack monitoring to protect the probe from background radiation (for example from HVAC filters) 301.011

Manufacturer:	IBA Partner
Article code:	301.010



Lead castle for stack monitoring probe	Qty	Unit
	1	pc

Shielding of the measurement probe from background

Manufacturer:	IBA Partner
Article code:	301.011



Integrated radiation monitoring computer system	Qty	Unit
	1	pc

Radiation network software package that collects and displays radiation levels and alarm status.
Using this interface, radiation data may be placed onto the Ethernet network for real-time monitoring, email alerts, and saved into a database. Because the Supervisor software runs as a Windows Service, it continues running even if no user is logged onto the computer.
(Requires internet connection)

Manufacturer:	IBA Partner
Article code:	301.020



Cabling	Qty	Unit
	1	set

Additional cabling is required when the Multichannel analyser is located remote from, rather than local to, the stack monitoring probe.

Manufacturer:	IBA Partner
Article code:	301.022

Radiation Monitoring



Personal Pocket Dosimeters	Qty	Unit
	1	set
Dosimeters (pack of 10 units) and PC reader		
Manufacturer:	IBA Partner	
Article code:	311.004	



Portable gamma dose ratemeter + contamination probe	Qty	Unit
	1	pc
Dose Rate Meter Measuring range: 1 µSv/h - 1 Sv/h WITH Contamination probe		
Manufacturer:	IBA Partner	
Article code:	311.008	



Portable survey monitor for neutron (numeric)	Qty	Unit
	1	pc
Model 30-4 portable integrated unit for neutron dosimetry, numeric display (6,6 kg)		
Manufacturer:	IBA Partner	
Article code:	311.011	



Hand and Foot monitor	Qty	Unit
	1	pc
Digital hand, foot and clothes digital monitor - GM probes		
Manufacturer:	IBA Partner	
Article code:	316.002	



Installation for Scannix radiation monitoring	Qty	Unit
	1	set
- System overview & integration - Documentation of components - Factory Acceptance Test (FAT) with Systems manuals, block diagrams and drawings - FAT Reports - Field calibration procedures - System Manuals - Site Acceptance Tests		
Manufacturer:	IBA Partner	
Article code:	600.091	

Integralab

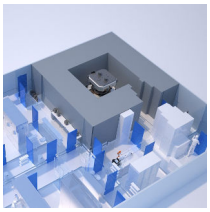


IBA GMP Layout for PET project	Qty	Unit
	1	set

Layout for all the rooms related to the PET center, designed to incorporate requirements of Eudralex Volume 4 (GMP Guidelines) and to integrate all the equipment part of IBA scope of supply.

Optional: 001.006 3D_IBA GMP Layout for PET project

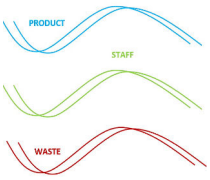
Manufacturer:	IBA
Article code:	001.001



IBA Cyclotron Vault Layout	Qty	Unit
	1	set

Cyclotron vault design, in accordance with current Radiation Safety Standards (With option of shielded plug door or maze design)

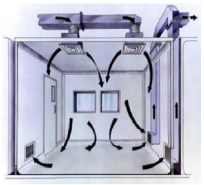
Manufacturer:	IBA
Article code:	001.002



Staff, product & waste flow for PET project	Qty	Unit
	1	set

Diagrams detailing flows of Staff, Products & Waste materials for PET project. Optional for basic design (001.010), based on IBA GMP layout

Manufacturer:	IBA
Article code:	001.004



Aeraulic flow diagram for PET project	Qty	Unit
	1	set

The aeraulic diagram for air conditioning, heating and cooling system of the center is based on pressure cascades and rooms' classification compliant with radiation safety rules and GMP guidelines.

Manufacturer:	IBA
Article code:	001.005



Building Basic Design for PET project	Qty	Unit
	1	set

Goals: transmission of fundamental information including pressures, air change rates, pharmaceutical & area classification for elaboration by customer's architect of detailed building design.
Additionally, 3 days of remote support by IBA engineer are included.

Conditions: all supplied documents in English language and according to European standards for building construction

For facility surface: 440m² + 120m² technical room - price subject to revision if area of building increased over 7%

Options: Room data sheets: 001.011 and Building Principal Design: 001.016

Manufacturer:	IBA
Article code:	001.010



Room Technical Datasheets	Qty	Unit
	1	set

Including, for each room, all relevant information for building design (structural, finishing, ventilation, sanitary, electricity,…) and for quality control room, details of equipments (if part of scope of supply).
Optional for basic design (001.010)

Manufacturer:	IBA
Article code:	001.011

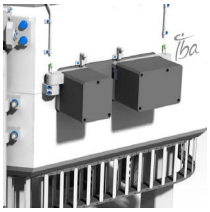
Integralab



Liquid waste diagram	Qty	Unit
	1	set

Including schematic diagram of decay tanks
Optional for basic design (001.010).

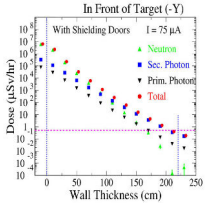
Manufacturer:	IBA
Article code:	001.014



Decommissioning Recommendation	Qty	Unit
	1	set

Building design recommendations in view of future decommissioning

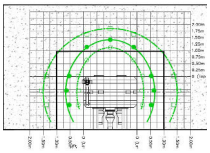
Manufacturer:	IBA
Article code:	002.001



Monte Carlo simulation for cyclotron standard vault	Qty	Unit
	1	set

Provides an assessment of radiation safety, based on a computer-simulated evaluation of the radiation levels in and around an operational cyclotron. (IBA vault design only)
- concrete plug door std configuration + MonteCarlo simulation dose rate
OR - concrete maze std configuration + MonteCarlo simulation dose rate

Manufacturer:	IBA
Article code:	002.010



Cyclotron external magnetic isocurves (Iso-Gauss)	Qty	Unit
	1	set

Magnetic Field Cartography (ISOGAUSS curves) are given so as to plan the cyclotron location.

Manufacturer:	IBA
Article code:	002.011



Additional Site visit by project manager	Qty	Unit
	1	set

additional to the two visits already included into the standard scope of cyclotron project (one day visit after project start and one visit for final site approval before rigging of equipment).

Manufacturer:	IBA
Article code:	610.010



Support by IBA specialist for one complete FDG run	Qty	Unit
	1	set

Complete production run including F18 production on cyclotron, transfer to hotcell, synthesis on chemistry module, dispensing and quality control according to Eur Pharmacopea.

Pre-requirements:-
- Facility running according to GMP
- Licences delivered by authorities (beam licence)
- All equipment installed and commissioned
- All consumables supplied by the buyer (enriched water, gases…)
- Production staff has been trained on all equipment
- Uniterrupted access of min 6 hours to the production area
- Presence of authorized personal for signature

Duration:
Maximum 3 days on site

Manufacturer:	IBA
Article code:	610.050

Integralab



Other supplied equipment coordination PET project	Qty	Unit
	1	set

In case of Integralab project, the project manager will be the single point of contact for all the equipment part of IBA scope of supply (hotcells, quality control equipment, lab equipment, radiation monitoring system…) and will take care of the coordination of the whole PET project.
One additional site visit is included.

Manufacturer:	IBA
Article code:	640.050

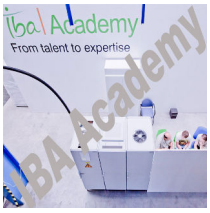


Standard warranty for 1st year for non IBA equipment	Qty	Unit
	1	set

Warranty for one (1) year on all equipment supplied on the contract.
Warranty covers material defect (excluding wrong handling by the user).

Manufacturer:	IBA
Article code:	650.050

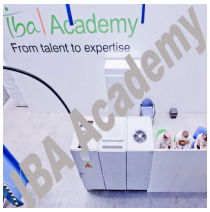
IBA Academy



Hotcells training at Customer site	Qty	Unit
	1	set

Hotcells and dispensing system training (in English) for production staff, performed during installation.

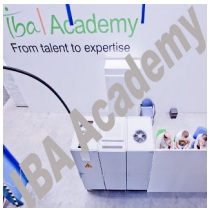
Manufacturer:	IBA Partner
Article code:	103.001



Radiation Protection Eqt training at Customer site	Qty	Unit
	1	set

Radioprotection training for health physics staff consisting of: 1 day of radiation protection equipment course (English) at customer site
Timing: at start-up of equipment
Location: at customer site

Manufacturer:	IBA Partner
Article code:	103.030

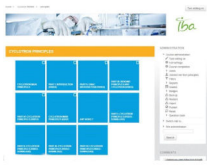


QA advanced training at IBA academy site	Qty	Unit
	1	set

Goals: educating to GMP guidelines, QC and FDG process requirements
Timing: generally, when buying QA, AMM support
Location: at IBA partner's site
Program: Theory and practice
Duration: 2 weeks
Max.nos of trainees: 2
Trainee's pre-requirement: QA manager or Head of operations, good command of English

Trainings given abroad are exclusive of transport and accommodation costs for the participants

Manufacturer:	IBA
Article code:	103.050



E-learning training platform for Cyclone® Kiube	Qty	Unit
	1	set

The IBA Academy e-learning platform is an online educational tool that has been designed for IBA equipment users

Manufacturer:	IBA
Article code:	620.000



Start-Up PET Cyclotron Training at Customer Site	Qty	Unit
	1	set

Goals: daily routine operation of the cyclotron
Timing: on start-up of equipment
Location: at customer site
Program: Theory courses and hands on sessions
Duration: 3 consecutive days
Max.nos of trainees: 4
Trainee's pre-requirement: e-learning training assessment, technical background, good command of English

Manufacturer:	IBA
Article code:	620.001

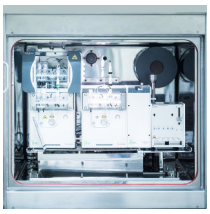
IBA Academy



Additional PET Cyclotron Training at customer site	Qty	Unit
	1	set

Goals: preventive maintenance, 1st line trouble shooting
Timing: to be agreed
Location: at customer site
Program: Theory courses and practical sessions
Duration: 5 consecutive days
Max.nos of trainees: 4
Trainee's pre-requirement: technical background, good command of English, Start-up training & capable of routine operation

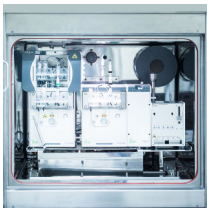
Manufacturer:	IBA
Article code:	620.002



Start-Up Synthera® Training at Customer site	Qty	Unit
	1	set

Goals: Synthera® platform operation
Timing: on start-up of equipment
Location: at customer's site
Program: Theory and practice on Synthera® for daily use
Duration: 4h
Max.nos of trainees: 4
Trainee's pre-requirement: chemistry background, good command of English

Manufacturer:	IBA
Article code:	620.030

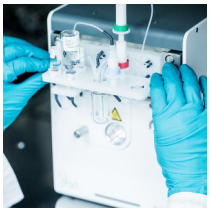


Preventive Maintenance Synthera® Training on site	Qty	Unit
	1	set

Goals: Preventive maintenance training on Synthera® module (exclusive of materials)
Timing: during 1rst year of Warranty
Location: at customer site
Program: Theory, preventive maintenance, Software and firmware update if available.
Duration: 1 day
Max.nos of trainees: 4
Trainee's pre-requirement: chemistry background, good command of English

The training includes a preventive maintenance of one Synthera equipment.

Manufacturer:	IBA
Article code:	620.031

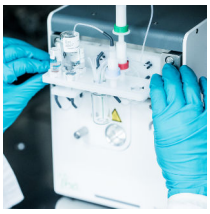


Synthera Application FDG Training at Customer site	Qty	Unit
	1	set

Goals: routine FDG synthesis with Synthera® module (exclusive of materials)
Timing: following installation
Location: at customer site
Program: Theory, troubleshooting and FDG production runs
Duration: 4h
Max.nos of trainees: 4
Trainee's pre-requirement: chemistry background, good command of English

Manufacturer:	IBA
Article code:	620.037

IBA Academy



Synthera Application FPSMA Training at Customer site	Qty	Unit
	1	set
Goals: routine FPSMA synthesis with Synthera® module (exclusive of materials) Timing: following installation Location: at customer site Program: Theory, troubleshooting and FPSMA production runs Duration: 1 day Max.nos of trainees: 4 Trainee's pre-requirement: chemistry background, good command of English		

Manufacturer:	IBA
Article code:	620.039

FREIGHT, INSURANCE & INSTALLATION

FREIGHT
Transport of all equipment DAP – Delivered at Place, Villahermosa, Mexico (Incoterms 2020) special transportation packing included.

INSURANCE
Insurance included and applied according to Incoterms of this quotation.

INSTALLATION
Installation of all material by qualified staff.

TERMS & CONDITIONS

PRICES
All prices are net, payable respectively in EUR. They do not include credit financing, nor credit insurance premium, nor credit bank guarantees. Prices are only valid if the entire scope of equipment is bought together (one order).

Prices include:
- DAP – Delivered at Place, Villahermosa, Mexico (Incoterms 2020)
- Rigging supervision if applicable, installation and commissioning of the equipment at customer's site.
- VAT, Taxes, Duties and local taxes (if any) will be applied according to Incoterms of this quotation.

Prices do not include:
- Items marked as Optional
- Obtaining local certifications
- Obtaining of all necessary licenses, permits and authorizations by local authorities.
- Rigging if applicable.

RESERVATIONS
There will be no obligation for IBA to fulfill this quotation until a complete agreement is signed by both parties, providing for full details of the transaction. The IBA's General Terms & Conditions are applicable.

Due to our continuous research and development program, IBA reserves the right to make changes in design, technical descriptions and specifications of its products without prior notice.

All pictures used in this quotation are none contractual and for illustration purposes only.

All information (including attachments) supplied in this quotation are classed confidential and are not to be disclosed for any reason to any third party other than government funding authorities.

This offer is submitted under the condition that all export licenses for this transaction have been granted, or, are not necessary and that the delivery of the goods/services does not offend against the Foreign Trade and Payment Law or the Foreign Trade Regulations.

IBA (and IBA partners) team in charge of installation and commissioning will carry out the installation provided that embassy rules allows them to travel in the country and provided that their security is fully warranted.

The possible dual language of the offer, English and your language, is for facilitating purposes only. In case of discrepancies and in case of disputes before a court or court of arbitration, the English version shall prevail.

Delays:

With specific regard to the Covid-19 outbreak and its consequences, if the Agreement is signed when such epidemic is already causing delays in IBA's or its supplier's business activities and/or a suspension in whole or in part of such activities (or it is foreseeable that it will cause them), the Section 10 of IBA General Terms and Conditions shall in any event apply, it being hereby agreed to deem the above-mentioned situation in any event as force majeure, although not unforeseeable at – and not supervening in respect of – the time when the Agreement was signed. Therefore, no penalties or damages will be due in case the IBA's delay is the result of issues regarding the Covid-19 pandemic, provided that IBA is giving reasonable justification.

VALIDITY
60 days from date of offer.

PAYMENT
A) 30% downpayment before 30/04/2026
B) 30% start of assembly 30/07/2026
C) 30% before shipment 30/04/2027
D) 10% at acceptance 30/11/2027

Payment of milestones B) C) and D) will be done through an irrevocable and confirmed Letter of Credit ("LC").

The LC shall be issued in favor of IBA by a first-class bank acceptable to IBA. The cost of issuance of the LC in Customer's country, shall be borne by Customer; all other costs outside Customer's country shall be borne by IBA. The LC shall be issued within maximum one (1) month after Effective Date of the contract and stay valid up to three (3) months after scheduled date of Acceptance"

Should it appear that the Customer will not obtain a Letter of Credit complying with the above-mentioned conditions, the contract will be subject to the obtention by IBA of a credit insurance. The Customer will use its best efforts to assist IBA with obtaining any documents (e.g. financial statements) that may be required by the (public or private) insurance company in order to grant such credit insurance.

In case no credit insurance can be found, IBA SA reserves the right to review the terms of payments.

PROJECT SCHEDULE
Delivery timeline subject to confirmation at the time of order.

Origin: the products and services may originate from a country other than the Seller's country of registration.

Signature for approval

Thank you for considering IBA equipment and services.

We trust you will find our quotation satisfactory and look forward to receiving your order.

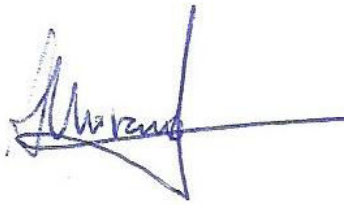
All quotations are subject to our final confirmation. Unless otherwise stated or agreed upon, all prices are net without commission.

Should you have any further questions please do not hesitate to contact me directly.

For further product information concerning IBA equipment please visit:

http://www.iba-radiopharmasolutions.com/

Respectfully submitted,



Chemin du Cyclotron, 3
1348 Louvain-la-Neuve
Tél: 010 / 47 58 11 - Fax: 010 / 47 58 10
T.V.A. BE 428.750.985 - R.C.N. 54.589

Approved,
Signature and stamp:

Ambrosio Moreno
VP Sales South America
IBA SA, Chemin du Cyclotron 3
1348 Louvain-La-Neuve, Belgium

This offer has been prepared by Ambrosio Moreno

Name: _____

Function: _____

Date: _____

IBA General Terms & Conditions

1. INTERPRETATION

"Acceptance" is reached once the Acceptance Tests, if any, have successfully been completed by IBA, whereby it is considered demonstrated to the Customer that the Supplies (unless otherwise stated, this term includes Spare Parts) entirely meet the requirements of the Agreement and hence IBA has fully accomplished its obligations in regard of the Supplies. The Supplies shall be deemed installed and accepted upon Acceptance Date;
"Acceptance Date" means the date on which IBA has successfully completed the Acceptance Tests as defined in Appendix to the Agreement, or the date of the first use of any or part of the Supplies by Customer, whichever occurs first;
"Acceptance Tests" are the tests listed in Appendix to the Agreement;
"Additional Work" means any works or services required by Customer to be provided in addition to the works and services generally necessary in the course of carrying out the works and services part of the Scope of Supplies, due to reasons out of the sphere of responsibilities of the Supplier;
"Customer's Country" means the country where the Site is located;
"Party" means Customer or IBA, and **"Parties"** means Customer and IBA;
The terms defined here and there in the Agreement or in this Appendix shall have the meanings here or there indicated, throughout the entire Agreement. Defined terms may be used in the singular or in the plural, reference to the male form of a term shall also include the female form. Terms such as "notably", "such as" and "including" shall be interpreted, when used in the Agreement, as including the notion "but not limited to".
These General Terms and Conditions ("GTC") exclude the Customer's general terms and conditions. Only a specific written agreement of the parties may validly deviate from these GTC.
Without prejudice to IBA's rights, if some terms of these GTC are, by their nature, and given the terms of the Agreement, not applicable, they shall be considered as void and shall not apply to the transaction.

2. PAYMENTS – LETTER OF CREDIT - CURRENCY

All payments by either Party to the other under the Agreement shall be in Euros and shall be made free of charge for IBA, in full, without any withholding or deduction. However, if the Customer is required to make such a payment subject to the deduction or withholding of tax, the sum payable by the Customer (in respect of which such deduction or withholding is required to be made) shall be increased to the extent necessary to ensure that IBA receives a sum net of any withholding or deduction equal to the sum which it would have received had no such deduction or withholding been made or required to be made.

The Price is subject to Indexation as follows: Each of the amounts due to be paid upon each Instalment, except the Down Payment, shall be determined by indexation of the amounts according to the following formula (the "Indexation"): Amount to be paid = amount as set out in the Agreement x (Index on date of invoice / Index on Effective Date) ("Index" shall refer to the S&P GSCI Industrial Metals index as published on https://www.spglobal.com/spdji/en/indices/commodities/sp-gsci-industrial-metals/#overview; in case this index should become unavailable, the Parties shall agree in good faith to apply an alternative index the scope of which shall be as closely to above index as possible). Indexation shall only apply in cases where the Index on date of invoice exceed the Index on Effective Date.
Additionally, should the actual payment of any invoice, including the Down Payment, be made more than 30 days after its due date, any such amount due shall be indexed (again) according to above Indexation rules.

All Payments shall be made by wire transfer to such account as the beneficiary of the payment may specify on the dates specified in the Agreement or, if no date is specified in the Agreement, within thirty (30) days from the date of the invoice, which may be transmitted by facsimile. Payments shall be deemed to have been made on the date on which the beneficiary has been credited for the proper amounts.
For each payment due by Customer, IBA may request issuance of one or several irrevocable and confirmed letter(s) of credit (each a "Letter of Credit", or "LC").
All complaints regarding IBA's invoices must be lodged within fifteen (15) days of the date of invoice. If Customer disputes that a payment is due and owing, it is nevertheless obligated to make the respective payment as provided in this Agreement. If the Parties subsequently agree, or if a subsequent arbitral award or a final judgment from a court of competent jurisdiction issued pursuant to an arbitral award decrees that some or all of the payment was not due, then IBA shall reimburse to Customer the amount of the disputed payment plus interest at a rate of 1% per month, calculated on a daily basis, on the amount paid but not due.

Any payment which is not paid on the due date shall accrue interest on a daily basis at a rate of 1% per month, or the maximum rate permitted by law, whichever shall be less. Additionally, IBA will have the right to suspend work or deliveries until the time that any arrears in Customer's account is paid by Customer or any applicable LC issued in favour of and expressly approved by IBA has been issued. All resulting additional costs for IBA shall be borne by Customer.
No amount from any payment or instalment may be offset against any damages or amounts claimed from the beneficiary of the payment.

3. TITLE AND RISK OF LOSS

Title shall pass from IBA to Customer after Customer has paid the Price in full. Customer represents and warrants that it shall not dispose of the Supplies or cause or permit any lien or encumbrance of any kind to be placed upon the Supplies until after the Price and all sums due by Customer to IBA under the Agreement have been paid in full. All rights in favour of the Customer arising from the transfer of the Supplies, however caused, to a third party shall be considered assigned automatically and in full to the Supplier. Risk of loss of any part of the Supplies shall pass from IBA to Customer upon shipment from IBA's factory of such parts to the Site or to storage if the shipment is delayed due to facts not in the sphere of responsibility of IBA, and from that time on, the Customer shall have the Supplies adequately insured at its costs against all losses and damages until the Acceptance Date, if the applicable Incoterm does not provide otherwise.

4. EXECUTION

a) If the Scope of Supplies includes installation services, the Price includes the cost of services part of the Scope of Supplies. The cost of any additional labour or any other costs required by or resulting from local labour regulations, union policies, local building code requirements, or any other code, rule, law, or regulation shall be timely paid by Customer to avoid any delay in installation.
b) The Supplies and Services are manufactured and installed according to Belgian and European technical standards. All additional costs related to making the Supplies or Services conform to any technical standards specified by Customer shall entirely be borne by Customer and are subject to agreement in the entire discretion of IBA to do so. Partial deliveries are allowed.
c) If IBA's performance of its obligations is prevented or delayed by any act or omission of Customer or its agents, subcontractors, consultants or employees, IBA shall not be deemed in breach of its obligations or otherwise liable for any costs, charges or losses sustained or incurred by Customer, in each case, to the extent arising directly or indirectly from such prevention or delay and IBA shall be entitled to an increase in fees due to Customer's acts or omission.
d) Any Additional Work carried out by IBA, or any changes or modifications requested by Customer and accepted by IBA, shall be performed at additional cost to Customer based on an offer to be made by IBA or at the then applicable rates for services rendered by IBA.
e) If any, the Customer shall organize the destruction, pick-up and/or clearing away of all waste, including the supplies packaging; all equipment removed by IBA or taken out of service by IBA in the frame of the performance of the Agreement shall be taken care of exclusively by the Customer during its entire lifetime. IBA shall not be responsible for their evacuation (rigging out) or disposal or decommissioning. All removed equipment will remain property of the Customer unless if IBA declares otherwise.
f) The occurrence or existence of any event of default or other similar condition or event (however described) that prevents IBA from correct execution of its obligations under any of the agreements entered into between the Customer and IBA (such as any cause for termination, failure to obtain licenses or permits, or any amounts due and not paid when due nor within any originally applicable grace period under any of these agreements) shall constitute an event of default touching all of said agreements.

5. DUTIES AND PERMITS

a) Customer shall pay any and all export and import duties (necessary permits or licenses relating to the Supplies) in connection with performance of the Agreement.
b) Customer shall (i) pay or reimburse (including notably but not limited to providing the necessary documents, declarations etc.) IBA for all import customs duties, sales, use, gross receipts, VAT, sales or service tax, excise and other taxes, inclusive of any fines, penalties and interest thereon, assessed or levied by IBA's or Customer's Country or any other federal, state or local

administration or jurisdiction, as a result of or in connection with the performance of the Agreement; (ii) obtain at its own expense all necessary permits or licenses with respect to the importation of the Supplies in Customer's Country and the installation and use of the Supplies, or performance of Services.

6. WARRANTY

a) IBA warrants (hereinafter the "**Warranty**"): (i) good title to the Supplies, and that it will be free from defects in material and workmanship for a period of one (1) year from the Acceptance Date of each of the Supplies or fifteen (15) months from the delivery to Site if the Acceptance Date is delayed at Customer's request or through the acts or omissions of Customer, whichever period is shorter (hereinafter the "**Warranty Period**"); or (ii) that IBA Spare Parts will be free from defects as set out in articles 1641 and following of the Belgian Civil Code as well as a commercial warranty for a period of one (1) year from the date of delivery; or (iii) performance of Services in a diligent, professional and competent manner, and in accordance with commercially reasonable practices generally used in the industry, using suitably trained and qualified personnel, and in accordance with applicable laws and regulations for a period of one (1) year from delivery (hereinafter the "**Warranty Period**").

This Warranty shall however not apply to consumable or to normal wear and tear; and IBA makes no warranty with respect to defects of which IBA is notified after the Warranty Period or which occur during operation without logging or failures due to alteration, misapplications, abuse, misuse, abnormal conditions of temperature, dirt, corrosive matter, maintenance not carried out according to IBA's instructions or with inappropriate maintenance tools, materials or consumable, lack of trained maintenance personnel, operation above rated capacities either intentional or otherwise, or in an otherwise improper manner, or physical damage caused by persons other than employees or agents of IBA, or if the Customer prevents IBA from remedying a defect. In-Warranty repairs or replacements parts are warranted only for the unexpired portion of the original Warranty Period of the Supplies.

All complaints concerning Spare Parts are only valid if they are notified to IBA by registered letter within 48 hours after delivery, unless in the case of hidden defects, immediately following their discovery within the Warranty period. Failure to complain within the appropriate time will be deemed to signify Acceptance of the delivery.

b) IBA's sole obligation under this limited Warranty shall be, at IBA's sole discretion, to repair or replace defective items expressly subject to such Warranty which are returned, if applicable, to IBA during the specified Warranty Period, provided that, however, (i) IBA is promptly notified in writing upon discovery by Customer of any claimed defect, and (ii) such items are properly packed, insured, and returned as provided herein. IBA shall bear the cost and risk of loss during transport of (i) any defective part or components being returned to IBA's factory with its prior written agreement and (ii) any repaired or replacement item being returned to Customer. Products or parts returned without the prior written agreement of IBA shall be at Customer's sole risk and expense. IBA shall bear any personnel costs incurred in connection with the fulfilment of its obligations under this Warranty. However, if no defect is found for which IBA is liable, IBA shall be entitled to compensation for the costs it has incurred at the then applicable rates for the same service provided outside of Warranty coverage.

Any Spare Parts returned for refund or repair must have a Return Material Authorization (RMA) number, must be accompanied by a duly filled in RMA form, and returned in accordance with IBA's return policy (all documents can be obtained on IBA Store and at customer_support@iba-group.com), at the costs and risks of the Customer. Returns which do not comply therewith will not be accepted. IBA will not be responsible for shipment lost during return process.

c) The foregoing warranties are exclusive and are given and accepted in lieu of all other warranties of quality written or oral, express or implied, and all other warranties are hereby disclaimed. IBA makes no warranty of merchantability or fitness for any particular purpose, nor any other warranty, express or implied, other than as specified herein. Section entitled "Limitation of Liability" hereof shall apply and, notwithstanding anything to the contrary, IBA shall in no event (including the decision of an arbitration panel or court of law) be liable, at any time, whether in contract, tort (including negligence) or on any other basis, for consequential, incidental, indirect or punitive damages, or amounts in excess of the price or any other losses incurred by Customer, including, with regard to loss of use, of production or loss of profits, present or anticipated, or loss of any other kind sustained by Customer, or by any person to whom Customer directly or indirectly provides services in connection with the Agreement, even in case it has been advised such damages or losses could or will occur. To the fullest extent permitted by law, Customer expressly waives any right it may have, statutory or otherwise, to any measure of damages other than repair or replacement as provided herein.

If, notwithstanding the foregoing, any warranty is implied by operation of law, IBA's liability as to any such warranty obligation implied by law shall be limited to replacing or, at IBA's sole discretion, repairing any defect covered by such warranty.

d) Customer shall keep a logbook of operation for the Supplies. In this logbook shall be documented all sessions of operation of the Supplies as well as any problems encountered during operation of the Supplies. A copy of this logbook shall be made available to IBA upon any occasion when Customer would present a claim for application of any warranty.

7. LIMITATION OF LIABILITY

a) IBA and Customer hereby acknowledge that the Supplies and Services, as offered, are or are performed on highly sophisticated devices which should be operated only by trained personnel and only for the intended purposes; that it is Customer's sole responsibility and obligation to retain and train, or cause to be trained, such personnel, including, by IBA; that, where necessary, the Supplies contain interlocking devices designed to prevent their operation in a manner which would cause injury to such personnel, but as in the case with all equipment utilizing high voltages, such personnel should assume that the interlocking devices are inoperative and should take appropriate measures to ensure that the voltage has been turned off prior to beginning work where high voltage is present during the start-up and/or operation of the Supplies; that it is inherent in the operation of the Supplies that portions thereof may emit dangerous ionizing radiation and may become activated during their normal operation; that it is Customer's sole obligation to determine the level of radioactivity, to ensure that a system exists for determining and recording the levels of radioactivity and to ensure that no personnel or other persons are exposed to radiation in excess of that permitted by applicable law, code, rules or regulations, or any health or safety hazards or risks as a result of the use or operation of the Supplies.

b) Based upon the foregoing acknowledgment, it is, therefore, agreed that IBA shall not incur any liability, damages or loss related to personal injury to any party arising out of the operation and/or maintenance of the Supplies or performance of the Services**.** In order to give effect to these limitations of IBA's liability, Customer and its insurers hereby agree to abandon any claim or recourse against IBA on such matter and to defend, indemnify and hold IBA harmless from any and all claims, damages, losses, judgments, costs and expenses, of any kind whatsoever, including, without limitation, attorney's fees, arising out of or related to personal injuries suffered or purportedly suffered by any party arising from or related to the operation and/or maintenance of the Supplies or performance of the Services.

8. INFRINGEMENT OF PROPRIETARY RIGHTS

a) Provided that Customer has complied with the notice requirements set forth in this Section, subsection b) below, and only with respect to such noticed claims, IBA shall indemnify and hold harmless Customer against any and all losses, liabilities and expenses, by reason of any third party claim, suit, action or proceeding for established infringement of any copyright, trademark or patent of the United States or the European Community country where the Site is located, resulting from or arising in connection exclusively with the design or manufacture of the Supplies or performance of the Services or any part thereof designed or manufactured by IBA (but not on standard parts from third parties), including any and all judgments or decrees which may be rendered against Customer (and reasonable attorney's fees only if IBA should fail to defend as provided in subsection b) hereof), and settlements made - with IBA's prior written consent - arising out of any such claim, suit, action or proceeding provided, however that this indemnity shall not extend to any infringement resulting from a breach by Customer of the Agreement or of IBA's instructions. IBA shall not be liable for any infringement or claim based upon the use or sale of the Supplies or performance of the Services, or based upon the Supplies, Services or part thereof when they are in combination with other equipment or technology not supplied by IBA or resulting from any modification made by Customer, without approval or instruction by IBA.

b) IBA shall defend at its own expense all suits, actions or proceedings brought against Customer with respect to the matters listed in this Section, subsection a) above. Customer shall have the right at its option and at its sole expense, to participate in the defence of any such claim, suit, action or proceeding, without relieving IBA of any obligation hereunder.

Customer shall immediately notify IBA in writing of any such claim made or threatened as to which Customer may be entitled to indemnification hereunder and shall cooperate with IBA in the defence thereof as requested by IBA, and IBA agrees to reimburse Customer for its reasonable out-of-pocket expenses incurred at IBA's specific request in connection with such cooperation. Customer shall refrain from any admission of liability, and shall not negotiate or enter into any settlement without IBA's prior written consent.

c) If, as a consequence of a final determination of any suit or any court decision involving any injunction resulting exclusively from the matters listed in this Section, subsection a) above, Customer is enjoined or limited in any material manner in the use of said Supplies or part, IBA shall, at its option and at its own

expense either i) procure for Customer the right to continue use of said Supplies or part, ii) so modify the Supplies or part so as to render them non-infringing without any significant effect upon the use thereof, or iii) replace the Supplies or part with an equivalent non-infringing product.
d) The foregoing states IBA's entire liability for any claim based upon or related to any alleged infringement of any patent or other intellectual property rights and is subject to the Warranty provisions herein.

9. IBA'S PROPRIETARY INFORMATION

Any documentation or technical information however provided and in any form including without limitation, information manuals, drawings, specifications, designs, shapes of the Supplies or parts thereof, computer codes and software, operating codes, operating procedures related to the Supplies, the Services or the Additional Work (the "**Proprietary Information**") shall remain the property of IBA; and Customer shall have a royalty-free non-transferable license to use the same exclusively in connection with the operation, calibration, maintenance and repair of the Supplies by its own personnel. IBA shall own all right, title and interest to all custom work product. Customer expressly acknowledges and agrees that in no event shall custom work product be deemed to constitute "work made for hire" under any applicable law. Without limiting the foregoing, Customer shall not use any of the Proprietary Information supplied by IBA for any other purpose than the operation, calibration, maintenance and repair of the Supplies, including for the design or manufacturing of any equipment or parts of the Supplies unless the same is necessary to the operation of the Supplies and IBA has not been able to provide the required equipment or parts. Customer shall not try to reverse engineer the Supplies or process under the Services or part thereof nor register, apply for registration or attempt to acquire any other legal protection for any part of the said Proprietary Information in its own name, or any other name, or take any action which may affect IBA's rights, title and interest in and to the technology in any country, without obtaining the prior written consent of IBA. Customer shall treat such Proprietary Information in the same manner as it treats its own proprietary information and shall use similar means to protect it from unauthorized disclosure. Customer covenants and agrees, that the contents of such Proprietary Information shall not be divulged to any person or entity, except to its own employees having a "need to know" (and who are themselves bound by similar nondisclosure restrictions, obligation for which the Customer bears full and entire responsibility). Further, Customer shall not show or make accessible in any way the Supplies in any circumstance to any third-party that doesn't need to know, competitor or persons related to any competitor of IBA. Customer also shall keep strictly confidential any information related to the contents of the Agreement.

In case of Supplies or Services incorporating third parties' software products, Customer further agrees to be bound and governed by the terms and conditions of the original vendor's license agreement.
In case Customer intends to have the Supplies or part thereof maintained or repaired, or Services performed by a third party, such third party (i) shall not be a competitor of IBA and (ii) shall be bound by the same obligations regarding the Proprietary Information as these applying to Customer.
In the event that any part of the Proprietary Information becomes generally known to the public through legitimate origins (other than by breach of this Section by Customer), that part of information shall no longer be deemed Proprietary Information.

Customer acknowledges that (i) the unauthorized use or disclosure of IBA's Proprietary Information would cause irreparable harm to IBA; (ii) that remedies at law would be inadequate to redress the actual or threatened unauthorized use or disclosure and (iii) that the foregoing restrictions may be enforced by temporary and permanent injunctive relief.
In any case of Termination (except in the event Termination for Insolvency referred to in Section Termination), all and every information referred to under this Section entitled "IBA's Proprietary Information" shall be either destroyed or sent back to IBA, at its option.

10. EXCUSABLE DELAY - FORCE MAJEURE

Notwithstanding anything to the contrary herein contained, if the performance of the Agreement by any Party or the obligation of any Party is prevented, restricted or interfered with by reason of: i) fire, explosion, strike, lockout, labour dispute, casualty or accident (all of which not caused by acts or omissions of the Party concerned), or ii) epidemic, pandemic viral or infectious/communicable disease outbreak, quarantines, travel restrictions, or any associated government restrictions, , (iii) cyclone, drought, flood (only insofar of natural occurrences such as flooding significantly more severe or occurring at significant other times of the year or lasting significantly longer than normally occurring on a regular basis) or iv) war, whether declared or not, including acts of terrorism, revolution, riot, civil unrest, acts of public enemies, blockage or embargo, or similar situations making travel to Customer's Country, in IBA's discretion, insecure, or v) any law or proclamation, regulation, ordinance, demand or requirement of any applicable government or any subdivision thereof or representative of any such government, or vi) restrictions to travel or recommendations to avoid travel issued by the Belgian Government or EU institutions, or refusal by Customer's Country's authorities to grant visa or entry to Customer's Country necessary to enable IBA personnel to visit the Site and carry out the installation, services or works, or vii) refusal of any authority to grant any export or import license or export or import license exemption necessary to transfer all or parts of the Supplies to Customer's Country, or viii) any other acts whatsoever, whether similar or dissimilar to those enumerated (all what is listed in points i) to viii) above shall be regarded as "**Force Majeure**"), beyond the reasonable control of a Party hereto, then, and in that event, the Party so affected shall promptly notify the other Party of the Force Majeure event and its reasons, as well as all reasonable resulting difficulties. If Customer is a governmental organization or linked to such, events listed under v) above will not be considered Excusable Delay, if such event is caused by Customer itself or any other governmental body of its country. Force Majeure events incurred by any of IBA's subcontractors or suppliers will be deemed a Force Majeure Event of IBA.

Upon such notice, the Party whose obligation is prevented, restricted or interfered with by a reason listed above shall, for the duration of any such disability (referred to as "**Excusable Delay**"), be excused from the performance of such of its obligations as are prevented, restricted, or interfered with by reason of the occurrence of any of the events above enumerated and such party shall not be deemed to be in default under the Agreement nor be subject to any liability or damage. Excusable Delay under the same terms occurring in respect of any of IBA's sub-contractors shall be deemed to be Excusable Delay occurring to IBA.

The time period during which any Party is to perform under the Agreement shall be extended by the period of any Excusable Delay. If the Excusable Delay lasts more than one (1) consecutive year, or if it becomes reasonably certain that the Excusable Delay will be extended by more than one (1) year or that the further performance of the Agreement is rendered impossible by the event(s) causing the Excusable Delay, then either Party can terminate the Agreement with a thirty (30) days' notice. In such event, no Party shall have the right to claim damages in relation to such termination and non-performance and the Parties shall from and after such termination, be relieved from any further obligation under the Agreement other than payment obligation by Customer for invoices issued (or Supplies delivered or Services or work performed) by IBA prior to the date of the event of Force Majeure. In such case, unless the Parties agree otherwise, IBA shall reimburse to Customer all payments made by Customer for Supplies not yet started to be manufactured or Services or works not yet performed. The reimbursement shall be made within 180 days of receipt by IBA of the notice of termination according to this Section, net after deduction of all costs incurred by IBA as a result of this termination, including without limitation cost of special equipment made for Customer or the third party and assembly and disassembly of the Supplies incurred by IBA due to termination.
With specific regard to the Covid-19 outbreak and its consequences, if the Agreement is signed when such epidemic is already causing delays in IBA's or its supplier's business activities and/or a suspension in whole or in part of such activities (or it is foreseeable that it will cause them), this Section shall in any event apply, it is hereby agreed to deem the above-mentioned situation in any event as Force Majeure, although not unforeseeable at – and not supervening in respect of – the time when the Agreement was signed. Therefore, no penalties or damages will be due in case the IBA's delay is the result of issues regarding the Covid-19 pandemic, provided that IBA is giving reasonable justification.
Moreover, travel restrictions, including situations whereby authorities impose quarantine conditions to be respected by IBA personnel to access the site, shall equally be considered as a case of Force Majeure.

11. TERMINATION

In the event that either Customer or IBA (i) makes a general assignment for the benefit of the creditors or becomes insolvent; (ii) files an insolvency petition in bankruptcy; (iii) petitions for or acquiesces in the appointment of any receiver, trustee or similar officer to liquidate or conserve its business or any substantial part of its assets; (iv) commences, under the laws of any jurisdiction, any proceeding involving its insolvency, bankruptcy, reorganization, adjustment of debt, dissolution, liquidation or any other similar proceeding for the release of financially distressed debtors; or (v) becomes a party to any proceeding or action of the type described above in sections (iii) or (iv) and such proceeding or action remains undismissed or unstayed for a period of more than 120 days;

the other Party shall have the right to suspend work and/or to terminate the Agreement ("**Termination for Insolvency**").

Customer may suspend its performance under the Agreement, if (a) IBA breaches any material provision of the Agreement, and fails within 60 days after receipt of written notice from Customer specifying in reasonable detail the nature of such breach, to cure such breach; or (b) IBA fails to comply with any applicable law or regulations in the course of performing its obligations under the Agreement and fails within 60 days after receipt of written notice from Customer specifying in reasonable detail the nature of such failure, to cure such breach.
Customer may terminate the Agreement if (a) IBA breaches any material provision of the Agreement, and fails within 180 days after receipt of written notice from Customer specifying in reasonable detail the nature of such breach, to cure such breach; or (b) IBA repeatedly fails to comply with any applicable law or regulations in the course of performing its obligations under the Agreement and fails within 180 days after receipt of written notice from Customer specifying in reasonable detail the nature of such failure, to cure such breach.
IBA may suspend its performance under the Agreement in part or in total, if (a) Customer breaches any material provision of the Agreement, and fails within 60 days after receipt of written notice from IBA specifying in reasonable detail the nature of such breach, to cure of such breach; (b) Customer is in delay with regard to the performance of one of its substantial obligations (notably including payment of Instalment, issuance of any LC and reaching the Building Beneficiary Occupancy Date) for more than 60 days beyond the date initially scheduled; or (c) Customer fails to comply with any applicable law or regulations in the course of performing its obligations under the Agreement and fails within 60 days after receipt of written notice from IBA specifying in reasonable detail the nature of such failure, to cure such breach; or (d) Customer repeatedly fails to pay its debts as they become due.
IBA may terminate the Agreement in part or in total, if (a) Customer breaches any material provision of the Agreement, and fails within 180 days after receipt of written notice from IBA specifying in reasonable detail the nature of such breach, to cure of such breach; (b) Customer is in delay with regard to the performance of one of its substantial obligations (notably including payment of Instalment, issuance of any LC or reaching the Building Beneficiary Occupancy Date) for more than 180 days beyond the date initially scheduled; or (c) Customer fails to comply with any applicable law or regulations in the course of performing its obligations under the Agreement and fails within 180 days after receipt of written notice from IBA specifying in reasonable detail the nature of such failure, to cure such breach; or (d) Customer has repeatedly failed for more than 60 days to pay its debts as they had become due or admits its inability to pay its debts (each a "**Termination for Customer's Breach**").

In case of Termination for Insolvency, Termination for Customer's Breach or due to a fault/breach (Customer's tort) or for convenience (if allowed under the Agreement) of/by the Customer, all Instalments already paid by the Customer to IBA shall be considered as definitively acquired by IBA. In addition to this amount, the Customer shall immediately pay (i) any and all further payment(s) owed to IBA, including the remaining Instalment(s) but with deduction of the projected costs and expenses saved by IBA as a consequence of the termination, as reasonably evaluated by IBA; plus (ii) the entire lost profit/margin which IBA would have made from full performance by the Customer, (iii) all overhead costs incurred by IBA, (iv) all incidental damages, and (v) all unexpected expenses and costs of IBA incurred as a result of or in connection with the termination (including, without limitation, costs of removal of the Supplies from the Site which may be carried out by IBA and its authorized representatives in its entire discretion, with the reasonable support of Customer).
In case of Termination for Insolvency of IBA, the Title on the Supplies will pass from IBA to Customer.

12. NOTICES

Any notice given under the Agreement shall be made in writing, shall be given by telecopy or reputable overnight courier and shall be addressed to representatives having signed the Agreement, at the address mentioned in the Agreement. Either Party, by written notice to the other, may change the representatives or address to which notices will be directed. Any notice shall be deemed given on the date actually delivered except in case recipient cannot be reached during standard business hours, in which case notices shall be deemed given three days after the first attempt to be delivered.
In regard of notices, and as a general rule, it shall apply that, when the last day of any period prescribed herein falls on a day which is not a working day in Belgium or in Customer's country, the obligation, action etc. linked may be performed on the first working day following the aforementioned day.

13. ASSIGNMENT

The Agreement shall inure to the benefit of and be binding upon each of the Parties hereto and their respective successors and assignees, but neither the rights nor the duties of either Party hereunder may be assigned, in whole or in part by either Party, without the prior written consent of the other Party. Such consent shall not be unreasonably withheld by either Party. Right to Customer's payment may be assigned or pledged by IBA without consent of Customer. Any assignment shall not relieve the assignee of any of the Agreement obligations of the assignor.

14. WAIVER

No failure on the part of any Party to exercise any right, power, or privilege hereunder shall operate as a waiver thereof, or of any other right, power, or privilege hereunder, nor shall any single or partial exercise of any right, power, or privilege hereunder preclude any other or further exercise thereof, or the exercise of any other right, power or privilege. No extension of time for performance of any obligation or act shall be deemed an extension of the time for performance of any other obligation or act. Except as specifically provided herein, the exercise of any remedy provided in the Agreement shall not be a waiver of any other remedy provided by law.

15. SEVERABILITY

If any term or provision of the Agreement is held to be illegal or unenforceable, then the Agreement, except for such part or parts thereof, shall continue to be in full force and effect.
The provisions of the Agreement may not be modified or superseded except by an instrument in writing, acknowledged to be an amendment to the Agreement, signed by a duly authorized officer or representative of each of the parties hereto. This shall also apply to modifications of the present clause.

16. GOVERNING LAW; CHOICE OF VENUE; JURISDICTION AND ARBITRATION

Except as provided by the applicable law, each party's liabilities and commitments shall be strictly limited to those specified in the Agreement.

The Agreement shall exclusively be governed by and construed in all respects in accordance with the laws of Belgium. The Parties expressly exclude the application of the United Nations Convention on Contracts for the International Sale of Goods, in conformity with article 6 thereof.
All disputes arising in connection with the Agreement shall be exclusively settled under the Rules of Conciliation and Arbitration of the International Chamber of Commerce, in Brussels by one or more arbitrators, appointed in accordance with the said rules, who will assume the powers of "amiable reconciliatory", under the generally accepted rules and practices of International Commercial Law. The Emergency Arbitrator Provisions shall not apply. Arbitration proceedings shall be conducted in English.
The award, sentence and any order of the arbitrator(s) shall be final and binding on all Parties to such arbitration and judgment thereon may be entered in any court having jurisdiction thereof. For the purposes set forth in this Section, Customer and IBA hereby irrevocably consent to the jurisdiction of such courts and the enforcement of their decisions, and waive any defence based upon improper venue, inconvenient forum, or lack of personal or subject matter jurisdiction.

Work under this Agreement shall continue during the arbitration proceedings and payments due to IBA shall not be withheld on account of such proceedings unless such particular work or payment is the subject matter of the arbitration in which case this provision shall not apply to such particular work or payment.
No claims, regardless of form, arising out of, or in any way connected with the Agreement may be brought by Customer more than one (1) year after the cause of action has accrued or performance under this contract has been completed, terminated or Acceptance Date, whichever is earlier. IBA's invoices not contested in writing within 15 days of receipt shall be considered accepted.

17. NON-SOLICITATION

The Customer agrees not to hire, solicit nor attempt to solicit the services (i) of any employee or subcontractor of IBA, or (ii) of any ex-employee or ex subcontractor having interrupted its contractual relationship with IBA within the previous year, without the prior written consent of IBA. In event of a breach, the defaulting Party will pay to the other a minimum indemnification of two hundred and fifty thousand Euros per breach, without prejudice to any other damages or remedies such other Party may claim at law or equity.

18. SURVIVAL

The obligations set forth in the sections entitled "Title and Risk of Loss", "Warranty", "Limitation of Liability", "Infringement of Proprietary Rights", "IBA's Proprietary Information", "Termination", "Waiver", "Governing Law; Choice of Venue; Jurisdiction and Arbitration ", "Non-Solicitation" and "Survival" shall survive cancellation, termination or nullity of the Agreement.